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ASSOCIATION OF RESPONSIBLE DOG OWNERS
SAFETY FREEDOM CONTROL®

Submission response on behalf of the Association of Responsible Dog Owners.

Date: 14th March 2024

COM/2023/769: Directive on the "welfare of dogs and cats and their traceability"

Article 15: 3 (c) Painful Practices - (c) exposing dogs and cats to an electric current

We wish to raise our concerns in relation to the above article, together with our reasoning. Whilst we encourage measures designed and demonstrated to improve the welfare experience of animals in boarding and breeding establishments as well as anywhere else, we are apprehensive about the potential for well-intended proposals being used as the initial wedge for a snowball effect of unintended, welfare-*compromising* measures.

Our submission hopes to encourage decision makers to reconsider the necessity for the inclusion of 15.3.(c) "exposing dogs and cats to an electric current". This blunt inclusion appears to be a prima facie ethically appropriate, virtuous addition. After all, "Who would want to deliver electric current to a beloved companion animal?" But we will show that electrical stimulation can be responsibly utilised to harmlessly, efficiently and effectively change and improve the welfare and safety of dogs, other animals, and the experiences of people.

Our submission highlights the benefits of electronic training aids (ETA's) for dogs from both an *applied* perspective and the *theoretical/scientific* position. We

take an accurate and objective look at some terms and perspectives, commonly used to justify the banning of all electrical stimulation for dogs (and cats) and show that electrical stimulation and promotion of animal welfare are not always mutually incompatible. Our submission focuses primarily on dogs.

Who are we?

About the Association of Responsible Dog Owners (hereafter referred to as ARDO)

The Association of Responsible Dog Owners (ARDO) is a non-fee- paying, not-for-profit, international collective of dog owners, canine professionals and enthusiasts, with a shared common purpose - to educate and to respond accurately and without bias or favour to pertinent, canine-related matters using both scientific and empirical evidence on behalf of those with direct experience of such matters. Historically, wide-ranging canine-related decisions directly affecting dog owners and their dogs, have been reached without the owners themselves having been consulted or having a non- political, impartial representative body to speak on their behalf. ARDO works to provide that body, the 'owners' voice'.

What does ARDO offer?

In 2018, ARDO opened an online survey at our website regarding Electronic Training Aids [ETA's]* for dogs [1]. This survey was shared widely using social media platforms. *(See below).

Questions ranged from 'where the dog was acquired' and 'what had been tried prior to ETA's', to 'did ETA inclusion resolve the issue' and most importantly 'were there any negative effects'? The survey included a 'free text' option, which documented an extensive body of first-hand accounts from those persons to whom any proposal to ban ETA's would directly affect. Those persons are made up of loving, considerate dog owners, many of whom have gone to extraordinary lengths to help resolve the behavioural issues or afford adequate protections for their dogs and other animals/persons before incorporating ETA's into their training efforts.

The survey closed in 2023 having gathered over 2,500 responses. To the best of our knowledge, no other survey exists with as much first-hand empirical data on the subject of everyday, applied ETA use to assist in the training, control and protection of their dogs and other animals/people.

Results

• 42% of respondents used an ETA to address chase (predatory behaviour), with a further 32.7% using an ETA to address failing to come when called. 73% of respondents used/using an ETA for off-lead reliability – providing for behavioural needs, safely.
• 86% of respondents had already undertaken alternative training to attempt to resolve the problem behaviour, with 35.6% of those having already tried a 'reward-only' trainer.
• Only 7 respondents heard about ETA via their vet, suggesting that such professionals have little direct experience of working with the problem behaviours concerned and almost no experience of working with electronic training aids.
• 78% of respondents used their ETA under supervision/guidance with 86.3% of respondents combining reward training with ETA use.
• 42.9% of respondents believe that without the ETA inclusion, their pet would have been confined for life.[1]
• 39.2% of respondents believe that the inclusion of an ETA prevented the death of their pet or another animal.
• 93% of respondents state that the inclusion of the ETA resolved their problem behaviour.
• 98.6% of respondents state that there were no negative effects.

It is also worth noting that many of the respondents have physical or psychological health or mobility impairments, limiting their ability to employ alternative approaches to satisfy the welfare needs and lawful, responsible control of their dogs.

What is an ETA?

An ETA exists in 3 forms:

1. <u>Electrical non-visible fencing system.</u>
   The animal wears a receiver collar powered by a small battery. The collar has two protruding contact points which contact the animal's skin. A wire (marked by small, interspersed flags) is placed either above or below ground to define a permitted 'invisible' boundary perimeter, determined by the human operator. Each end of the wire joins a central control unit which is attached to an electrical power supply. The wire then serves as an antenna which detects the approach of the collar worn by the dog. It causes the collar to emit a tone or non-electrical vibrating pulse as the dog approaches the visual flags and the buried wire. This is the 'safety signal'

from which the dog is trained to turn away upon hearing/feeling. Should the dog continue towards the wire, the collar emits a short, harmless electrical pulse deterrent, which travels *only* between the two contact points. It does not travel to Earth through the body of the dogs. It is a localised pulse, not an 'electric shock'. This pulse stimulates tissue located between the points and is detected by nerves as unpleasant or momentarily startling, causing the dog to move away from the cause towards the safety of the contained area. Advance in technology has seen app-based, mobile phone operated GPS type fencing systems. These work in exactly the same manner as described above, but without wires and control units. The user determines the intensity of pulse from their phone via the app. These products are gaining popularity with livestock and conservation uses too. They are portable, inexpensive, simple and effective at keeping animals safe [2] [3] Research has shown collar activated fencing does not compromise welfare and can actually improve animal confidence.[4]

2. <u>Anti-bark collars.</u>
   The animal wears a similar, battery powered collar to the containment system, but it contains a microphone and vocal-chord movement sensor technology. Should the dog bark, *if both the microphone and the movement sensors are simultaneously triggered*, a non-electrical safety signal is emitted, following which any additional barking triggers an immediate electrical pulse as per the containment collar. Unlike the fence wire, the pulse on an anti-bark collar is triggered by the dog barking. The collar sensitivity is adjustable so that ambient sounds, light yipping or whining will not trigger the pulse. The level of pulse can be determined by the operator, or some products use auto-detection technology. This means that the collar itself detects and remembers the appropriate level to cause a cessation of barking.
3. <u>Handheld training systems (e-collars).</u>
   These products work in a similar way to the more advanced (app-based) containment systems. The dog wears a receiver collar which is capable of delivering a localised, electrical pulse. This is delivered following activation from a handset or mobile phone app, operated by the user. Higher quality e-collars have additional built-in safety features, allowing the pulse to switch off after a certain time; a lock function (to mitigate accidental increases) and/or a 'cap' feature to restrict available pulse intensity.
   The user determines the timing, intensity and duration of the pulse, which is highly adjustable to suit the individual dog and the circumstances. In the same way that the dog is trained to respond to the 'safety signal' of the tone, vibration or flags with fence systems, so with e-collars the dog is trained to respond to the safety signal of the operator commands. In a short space of time, the dog learns that it can reliably predict and control/avoid

the pulse by responding in the appropriate manner to the commands, whereupon it is positively reinforced with food, play or praise and e-collar use may be discontinued. The unique features of the e-collar enable the delivery of an identical pulse over varying distances and contexts. This consistency and clarity expedite the learning process in the dog, whilst providing controlled, safe expression of behavioural freedom amidst highly distracting environments. E-collars are scientifically well documented [5] [6] [7] [8] [9] [10] [11] for their use in effectively stopping predation by dogs towards other vulnerable animals, protecting the welfare of both the dog and the prey animal. In such instances, the prey animal takes on the role of the containment fence flags, and the dog quickly learns not to approach them since they attribute the delivery of the pulse with approaching the chosen animal itself. This 'trial and error' learning is efficient, effective, only momentarily invasive and long lasting. Often, dogs do not differentiate between real prey and everyday moving objects such as vehicle wheels, cyclists or joggers. Responsible use of quality e-collars allows owners to swiftly cause the dog to think "the vehicle did it, but only when I chased it", thereby quickly resolving the issue and protecting both the dog and the public.

Our Primary Concern

ARDO are absolutely opposed to the unnecessary, disproportionate and/or unjustifiable exposure of a dog to any kind of to electrical current. We are not experts in the day to day running of commercial boarding, breeding or sales practices within the EU Member States, nor do we claim to be. As such, we cannot comment from direct experience on existing practices involving the exposure of dogs to electric current in such establishments. We can however, offer 3 examples where electric current might be justified under such conditions and we would ask decision makers to take these uses into consideration.

1. Provision of electrical boundary fencing systems to keep animals contained and safe
2. The therapeutic use of Transcutaneous Electrical Nerve Stimulation (TENS) to alleviate discomfort or aid recovery from injury
3. The use of 'anti-bark' collar technology to limit noise pollution from excessive barking and mitigate complaints or legal action

We respectfully request that consideration is given to the removal of Article 15: 3 (c) Painful Practices - (c) exposing dogs and cats to an electric current from the directive. We firmly believe that this simple sentence will serve as a 'Trojan Horse' example upon which further prohibitions will be based. We seek

assurances that the inclusion will not serve as sufficient justification for future legislative restrictions stemming from claims that "exposing dogs to electrical current is banned in boarding, breeding and sales establishments, therefore a ban is justified in *all* situations". As we can see from the earlier explanation of ETA's, there is a risk of 'throwing the baby out with the bathwater'. In the absence of such assurances, we propose that 15.3(c) is removed as being both unnecessary and a potential *risk* to progressing animal welfare.

Terms commonly used in a misleading manner to justify bans on electrical stimulation for dogs

Pain

The ability to recognise, respond and adapt to unpleasant stimuli or situations associated with unpleasant events is by no means in itself a 'negative' event. Indeed, the awful consequences of an inability to experience 'pain' can be seen in human sufferers of CIPA [12], which is a condition where the absence of the ability to experience 'pain' results in severely compromised welfare and very short life expectancy. Basically speaking, 'pain' involves experiencing a sensory input, which is transmitted as information to the brain via the nociceptive system, causing the animal to make the biologically appropriate responses including immediate withdrawal or avoidance from the perceived cause of the input; to "Learn how to behave when confronted with actual or possible tissue damage" [13]. The purpose of pain is to protect the animal from potentially harmful stimuli so that they can perpetuate their species. We include the word 'potentially' because it is possible to for the animal to be 'tricked' into perceiving an experience as having the potential to cause physical tissue damage, even where no such damage is possible. An example of such 'trickery' is described above, where a dog is rapidly trained with an e-collar to avoid approaching a prey animal through the timed administration of a harmless, targeted, localised electrical pulse. The maximum (5mj) strength of this pulse is limited so as to make actual cellular (tissue) damage impossible [14] [15] [16], however the animal's brain can be 'tricked' into responding as though the potential for tissue damage actually exists.

'Pain' is a subjective experience. As such, it is possible for one animal to perceive a stimulus in a way that we consider to be 'painful', whilst another appears to consider the exact same experience to be of little or no concern, or indeed motivational. It is not difficult to find everyday examples such as tattoo's, ice

baths, combat sports, weightlifting or even childbirth where mothers voluntarily elect to reject pain relief. We know that animals lack the capacity to self-report, and we know that dogs are not production line replicas of one another. Consequently, we cannot accurately state that exposure to *all* electrical current constitutes a 'painful practise'. 'Pain' is a matter of subjective experience and, like electrical current, is also a matter of degree. Even where 'pain' *is* known to be experienced, the relevant questions are questions of application, purpose, strength, duration, predictability and controllability, together with the practicality and efficacy of alternatives.

"To suppress pain would in many situations be disastrous .. Animals need to experience pain, or at least aversive stimuli, in order to escape damaging conditions, to produce memories of pain that help them to evade such conditions in the future, and to survive .."[17]

Palmer exercises similar caution and has caveats when discussing the deliberate causing of 'harm' to an animal. To suppose that all experiences which might elicit pain are therefore harms to the animal would, according to palmer, be incorrect. "A fleeting moment of fear" would be insufficient to reach Palmer's harm threshold. As would "short-term pain but long-term experiential benefits", because the experience is short-lived, and the interests of the dog are not negatively affected over time. Instead, when we consider the use of an ETA to prevent predatory attacks by dogs, the moral actions jigsaw beautifully with Palmer's criteria. Both the dog and other animals are made better-off over time than they would have been had the action not been taken.[18] In Sandoe et al, Meyer concurs, stating that "Training a dog not to chase livestock [is] indirectly beneficial to the animal .. Because ignoring it may, indirectly, lead to harm the animals in question."[19]

Stress

Like pain, data suggests pretty conclusively that all conscious, non-human animals have the capacity and the need to experience some kind of stress. Like with humans, the tolerance for and interpretation of what constitutes a stress is individually determined. In healthy doses, the activation of the stress response primes and prepares the animal for a perceived challenge. In unhealthy doses, such as prolonged exposure to excessively long, repetitive, inescapable, unpredictable or uncontrollable stressors, the stress response can have seriously deleterious effects on the animal's physical and psychological welfare as the animal fails to cope. Stress can strengthen, support and sustain an animal, as we

see in the stressing of muscle fibres during strenuous exercise and brain function during learning. It can also weaken, harm or even kill, as shown where uncontrolled dogs cause pregnant ewes to abort their lambs or die themselves – purely from the stress of the chase – an ongoing, international animal welfare issue where effective, non-lethal interventions are desperately sought. Too often (and irrespective of purpose and proof), the responsible use of quality ETA's is presented categorically as a stressor for which there can never be ethical justification. The fact that the dog may momentarily vocalise, lick their lips, tuck their tail and seek to escape, or the fact that they might have temporarily raised cortisol secretions, is used by many as unquestionable 'proof' of the unacceptable harms that can only every result from such use. But animal welfare is does not start and finish at the end of the lead. We must consider these measurements in context, certainly the in respect of the impact on other animals or people beyond the dog? What if the dog described above had previously attacked and killed other animals and would otherwise choose to do so again? What if this is the dog's new, intentionally conditioned association with approaching those animals? What if, when taken away from the situation, the stress indicators subside and return to baseline values? Can we truly conclude that the negative 'feelings' of the dog are of greater welfare significance than the lives or opportunity to experience life of the sheep and lambs? What if the alternatives are permanent behavioural restrictions, shooting or euthanising the dog? As Broom states: "Evidence about feelings must be considered, for it is important in animal welfare assessment, but to neglect so many other measures is illogical and harmful to the assessment of welfare, and hence to attempts to improve welfare" [20]

Necessity

We submit that in order to determine the justification for "exposing dogs to electrical current" in the form of responsible use of quality ETA's, we must follow the advice of Broom in considering 'many other measures.' As explained:

- What is the issue?
- What is the context?
- What are the options? Consider alternatives. Are they applicable? Have they been tried? Are they Practical? Are they demonstrable and proven to provide equal or greater safety in the given context?
- What are the consequences of action/inaction? These might include the experiences of the dog versus the experiences of other animals or people. Legal obligations and social expectations.
- The individual dog presented.

In the case of using quality ETA's to eliminate the risks posed by predation from determined, highly motivated dogs towards protected animals, moving vehicles

or people, we submit that the transient experience of pain or stress is for many dogs not only entirely justified, but ethically and legally commendable. No less so than the actions of the driver who blares a car horn to strike fear into the suddenly racing heart of a shrieking child stepping into the road, without harming a hair on her head. Should the child learn to 'look both ways', check for traffic and cross with caution thereafter, then a lifesaving lesson is taught.

Conclusion

We hope to have made our case in a succinct, yet logical manner. Our concerns are not with defending the right to gratuitously cause unjustifiable harms to dogs in *any* capacity or context, including breeding, boarding and sales premises. Instead, we urge decision makers to think twice about the potential 'ripple effect' of the inclusion under *Painful Practices* of *(c) exposing dogs and cats to an electric current.* Quality electronic training aids allow electrical current to be safely, ethically and effectively utilised in a manner which makes it more harmful to reject and prohibit it's use than it does to retain and protect it. Certainly, where the predatory potential of dogs threatens the safety and welfare of other animals or people. We submit this response as an Association of over 2,500 Responsible Dog Owners. We refer you to your own explanation of what responsible dog ownership means:

"'responsible ownership' means the commitment of a dog or cat owner or future dog or cat owner, to perform various duties focused on the satisfaction of the behavioural, environmental and physical needs of the dog or cat, and to prevent risks that the dog or cat may pose to the community, other animals or the environment."[21]

We remain committed and available to assist in providing further information or explanation whether in person or via any other means.

The Association of Responsible Dog Owners ®

ENDS

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